

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #04	CCRB Case #: 201412494	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 11/22/2014 4:30 PM	Location of Incident: West 170th Street and Jerome Avenue	18 Mo. SOL 5/22/2016	Precinct: 44		
Date/Time CV Reported Wed, 12/17/2014 12:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/17/2014 12:25 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Vincent Ritell	22044	955378	PBBX		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Jorge Flores	7680	954816	PBBX		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Vincent Ritell	Discourtesy: PO Vincent Ritell spoke discourteously to § 87(2)(b)			A . Unfounded	
B . POM Vincent Ritell	Off. Language: PO Vincent Ritell made remarks to § 87(2)(b) based upon race.			B . Unsubstantiated	
C . POM Vincent Ritell	Abuse: PO Vincent Ritell threatened § 87(2)(b) with the use of force.			C . Unsubstantiated	

Case Summary

At approximately 4:28 p.m. on November 22, 2014, § 87(2)(b) was parked near the intersection of West 170th Street and Jerome Avenue, in the Bronx. Her husband, § 87(2)(b) was sitting in the passenger's seat. When she tried to pull out of the spot, she was approached by PO Vincent Ritell and PO Jorge Flores of the 44th Precinct. § 87(2)(b) however, continued driving. In response, PO Ritell repeatedly shouted, "What the fuck?" (**Allegation A**) § 87(2)(b) then stopped her car. PO Ritell came up to her driver's-side window and stated, "Fucking Hispanics who don't speak English" (**Allegation B**). PO Ritell then issued § 87(2)(b) a summons for double parking.

After receiving the summons, § 87(2)(b) drove down the block and made a U-turn. As she drove back past PO Ritell, he again shouted, "What the fuck?" (**Subsumed in Allegation A**) § 87(2)(b) drove to the end of the block, where she stopped for traffic. PO Ritell approached her and told her that if she did not exit her vehicle, he would kill her (**Allegation C**). § 87(2)(b) exited her vehicle. PO Ritell then called her a "fucking bitch" (**Subsumed in Allegation A**). § 87(2)(b) was then issued summonses for § 87(2)(b)

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation. On January 28, 2015, a notice of claim request was submitted to the Comptroller's office. The results will be added to the case file upon receipt. § 87(2)(b) [§§ 86(1)(2)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) (Encl. 2A).
- PO Ritell has been a member of the service for one year, and there are no substantiated CCRB allegations against him. No discourtesy, offensive language or threat of force allegations have been made against him previously (Encl. 1A).

Findings and Recommendations

§ 87(2)(g)

Allegation A – Discourtesy: PO Vincent Ritell spoke discourteously to § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on December 19, 2014 (Encl. 4A-B). She alleged that both times that PO Ritell stopped her, he shouted, "What the fuck?" She also alleged that during the second stop, PO Ritell referred to her as a "fucking bitch." § 87(2)(b) was interviewed over the phone on December 23, 2014 (Encl. 5A-B). He stated that PO Ritell stopped § 87(2)(b) the first time by asking, "Stop, what are you doing?" He also stated that PO Ritell stopped her the second time by shouting, "Stop, get out!" He did not allege that PO Ritell used any profanity to effect either stop. He also made no mention of PO Ritell referring to § 87(2)(b) as a "bitch."

PO Ritell was interviewed on January 22, 2015 (Encl. 7H-J), and PO Flores was interviewed on February 6, 2015 (Encl. 8F-H). Both officers stated that § 87(2)(b) was issued a summons for § 87(2)(b) for shouting “Fuck the police!” at them as she drove by. They further stated that while PO Ritell was issuing the summons, he repeated this phrase back to her to explain why they had stopped her. Both officers denied that PO Ritell used any profanity beyond repeating § 87(2)(b)s words back to her, including when § 87(2)(b) was being stopped.

§ 87(2)(g)

_____, it is recommended that
Allegation A be closed as **unfounded**.

Allegation B – Offensive Language: PO Vincent Ritell made remarks to § 87(2)(b) based upon race.

Allegation C – Abuse of Authority: PO Vincent Ritell threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that during the incident, PO Ritell complained to her about “stupid Hispanics who don’t speak English.” § 87(2)(b) alleged that PO Ritell asked § 87(2)(b) “Why don’t you speak English? Fucking Hispanics.” § 87(2)(b) and § 87(2)(b) both also alleged that when PO Ritell approached their car for the second time, he told § 87(2)(b) that he would shoot her if she did not exit her car. Both PO Ritell and PO Flores denied that PO Ritell made any derogatory remarks towards § 87(2)(b) regarding her language or her ethnicity, or threatened to harm § 87(2)(b) in any way. § 87(2)(g)

_____. Therefore, it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date